

Table of Contents



- 1. Introduction
- 2. Meaning and nature of the intellectual property
- 3. Meaning of Intellectual Property Rights
- 4. Need for legal protection of intellectual property
- 5. Advantages and disadvantages of Intellectual Property Rights
 - 5.1. Advantages of Intellectual Property Rights
 - 5.2. Disadvantages of Intellectual Property Rights
- 6. Components of Intellectual Property Rights
 - 6.1. Copyright
 - 6.1.1. What kind of works can be protected under copyright
 - 6.1.2. Law relating to copyright in India : the Copyright Act, 1957
 - 6.1.3. Copyright infringement
 - 6.1.4. How to register a copyright in India
 - 6.1.4.1. Steps to register copyright
 - 6.1.5. Need and benefits of registration of copyright
 - 6.2. Patents
 - 6.2.1. Criteria for patentability of an invention
 - 6.2.2. What kind of protection is given by patents
 - 6.2.3. Patent law in India: the Patents Act, 1970
 - 6.2.4. Patent infringement and remedies
 - 6.2.5. Procedure of obtaining a patent in India
 - 6.2.6. What are the benefits of patent registration
 - 6.3. Trademarks and service marks
 - 6.3.1. What is the function/purpose of a trademark
 - 6.3.2. Law regulating to trademarks in India: the Trademarks Act, 1999
 - 6.3.3. Infringement of trademark
 - 6.3.4. Process of registration of trademark in India
 - 6.3.5. Benefits of trademark registration
 - 6.4. Industrial designs
 - 6.4.1. Type of protection provided by industrial design
 - 6.4.2. Kinds of products that can come under Industrial design protection
 - 6.4.3. Law relating to designs in India: the Designs Act, 2000

- 6.4. Industrial designs
 - 6.4.1. Type of protection provided by industrial design
 - 6.4.2. Kinds of products that can come under Industrial design protection
 - 6.4.3. Law relating to designs in India: the Designs Act, 2000
- 6.5. Geographical Indications (GI)
 - 6.5.1. Benefits of registration of GI
 - 6.5.2. Law relating to GI in India: the Geographical Indications of Goods (Registration and Protection) Act, 1999
- 6.6. Trade Secrets
 - 6.6.1. Types of trade secrets
- 6.7. Layout designs of integrated circuits
 - 6.7.1. The Semiconductor Integrated Circuits Layout Designs Act, 2000
- 7. Other laws relating to Intellectual Property Rights in India
 - 7.1. The Protection of Plant Varieties and Farmers' Rights Act, 2001
 - 7.2. The Biological Diversity Act, 2002
- 8. A quick glance at the important Intellectual Property Rights
- 9. International regime of Intellectual Property Rights
 - 9.1. The Paris Convention on the Protection of Industrial Property
 - 9.2. Patent Co-operation Treaty, 1970
 - 9.3. Berne Convention for Protection of Literary and Artistic Works, 1886
 - 9.4. Universal Copyright Convention, 1952
 - 9.5. Rome Convention for the Protection of Performers, Producers of Phonograms and Broadcasting Organisations (1961)
 - 9.6. WIPO Copyright Treaty, 1996
 - 9.7. Hague Agreement concerning the International Deposit of Industrial Design, 1925
 - 9.8. World Intellectual Property Organisation (WIPO)
 - 9.8.1. Objectives of WIPO
 - 9.9. TRIPS Agreement
 - 9.9.1. Categories of IP covered by TRIPS
- 10. Intellectual Property Rights in India : FAQs
 - 10.1. FAQs regarding Patents in India
 - 10.2. FAQs regarding designs in India
 - 10.3. FAQs regarding Geographical indications (GI)
- 11. Conclusion
- 12. References

Introduction

Intellectual Property Rights (IPRs) are the rights associated with intangible property owned by a person/company and protected against use without consent. Thus, rights relating to ownership of intellectual property are called Intellectual Property Rights. These rights aim to protect intellectual property (creations of human intellect) by allowing the creators of trademarks, patents, or copyrighted works to benefit from their creations. The [Universal Declaration of Human Rights \(UDHR\)](#) also refers to intellectual property rights under Article 27 which states that "*Everyone has the right to the protection of the moral and material interests resulting from any scientific, literary or artistic production of which he is the author.*"

Thus, the purpose of IPR is to reward human intellect by providing exclusive rights to the creators over their inventions, artistic, musical works, etc.

In this article, the author has discussed the meaning of intellectual property and intellectual property rights, the international regime of IPR and laws relating to IPR in India, etc.

Meaning and nature of the intellectual property

Intellectual property (IP) is an intangible property that comes into existence through human intellect. It refers to the creations of the mind or the products of human intellect such as inventions; designs; literary and artistic works; symbols, names and images used in commerce.

The “[Convention Establishing the World Intellectual Property Organisation](#)” states that “*intellectual property*” shall include the rights relating to: —

1. *literary, artistic, and scientific works,*
2. *performances of performing artists, phonograms, and broadcasts,*
3. *inventions in all fields of human endeavour,*
4. *scientific discoveries,*
5. *industrial designs,*
6. *trademarks, service marks, commercial names and designations,*
7. *protection against unfair competition, and*
8. *all other rights resulting from intellectual activity in the industrial, scientific, literary, or artistic fields.*

Other categories of intellectual property include geographical indications, rights in respect of know-how or undisclosed information, and layout designs of integrated circuits.

Meaning of Intellectual Property Rights

The term “Intellectual Property Rights (IPR)” is used to refer to the bundle of rights conferred by law on a creator/owner of intellectual property. These are the rights that a person has over the creations of his mind. They seek to protect the interests of the creators by rewarding their mental labour and allowing them to retain property rights over their creations. The creators and inventors are thus allowed to benefit from their creations. IP rights are the legal rights governing the use of intellectual property.

Need for legal protection of intellectual property

The various reasons behind granting protection to intellectual property through the enactment of suitable Intellectual Property (IP) laws are as follows:

1. To encourage inventions and creations that promote the social, economic, scientific, and cultural development of society by incentivising the creators and allowing them to make economic gains out of their creations.
2. To provide legal protection to intellectual creations.
3. To prevent third parties from enjoying the fruits of someone else's creativity.
4. To facilitate fair trading.
5. To promote creativity and its dissemination.
6. Giving recognition to the efforts of creators.
7. Preventing the infringement of proprietary rights of creators in their creations from unauthorised use.
8. To encourage investment of skill, time, finance, and other resources into innovation activities in a manner that is beneficial to society.

Advantages of Intellectual Property Rights

1. IPR protection gives your business a competitive advantage over other similar businesses.
2. IPR protection allows you to prevent unauthorised use of your intellectual property and works.
3. IPR enhances the value of your company and also opens avenues for collaborations and opportunities for generating income such as by entering into licensing agreements to exploit/work the invention/work.
4. IPR helps to attract clients and creates your brand value. For example, the consumers start identifying your products with the unique logo or registered trademark.

Disadvantages of Intellectual Property Rights

1. You have to incur additional costs for getting IPR protection including legal costs and other fees.
2. Even after getting the intellectual property right, you might still face a lot of difficulties in curbing the copying and unauthorised use of your work. Moreover, sometimes an attempt to enforce IP rights could lead to a reduction in the consumer base.
3. IP rights aren't absolute. There are certain limitations and conditions imposed by law on the exercise of these rights (such as a limited period of protection and compulsory licensing provisions) in the interests of the general public.

Components of Intellectual Property Rights

Copyright

The term 'copyright' concerns the rights of the creators/authors of literary and artistic works. A copyright is also called a 'literary right' or 'author's right'. Copyright gives an author exclusive rights to his creation and prevents the copying and unauthorised publishing of his work. Copyright protection begins at the very moment a work is created and expressed in some tangible form. Copyright protection is granted to a work that is an original creation. Also, the protection extends only to expressions. Mere ideas without any tangible expression are not granted legal protection and do not form the subject matter of copyright. Copyright protects the following two rights of the author:

1. Economic rights i.e., the right of the owner to derive financial benefit from the use of their works by others. For instance, the right to prohibit or authorise reproduction of the work in various forms, the right to prohibit unauthorised translation of the work, etc.
2. Moral rights i.e., protection of non-economic interests of the author. For instance, the right to oppose changes to work and the right to claim authorship, etc.

What kind of works can be protected under copyright

The following categories of works typically come under copyright protection:

- Literary works such as novels, plays, poems, and newspaper articles;
- Computer programs and databases;
- Films, musical compositions, and choreography;
- Artistic works such as photographs, paintings, drawings, and sculpture;
- Architecture and advertisements, maps, and technical drawings.

In India, the **term** of copyright protection extends throughout the lifetime of the author and then 60 years after his death.

Law relating to copyright in India : the Copyright Act, 1957

The [Copyright Act, 1957](#) is a comprehensive legislation dealing with copyrights in India.

The Act regulates the various aspects relating to copyright regime in India such as:

- Registration of copyright
- Publication, term of copyright
- Assignment, and licence of copyright
- Special rights of broadcasting organisation and performer's rights
- Infringement of copyright and remedies thereof
- Establishment of copyright authorities and copyright societies
- International Copyright

The term of copyright protection provided under the Act for the various categories of works is given below:

1. Literary, dramatic, musical and artistic works: Life of the author plus 60 years after death.
2. Anonymous and pseudonymous works: 60 years from the date of publication. However, if the identity of the author is disclosed before the expiry of that 60 years, then the term of protection shall be life of the author plus 60 years after death.
3. Posthumous works: 60 years from publication.
4. Cinematograph films: 60 years from publication.
5. Sound recordings: 60 years from publication.
6. Government work: 60 years from publication.
7. Works of public undertakings: 60 years from publication.
8. Works of international organisations: 60 years from the publication of the work.

